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terests in civil litigation, Virginia law prescribes, rest exclusively with the State’s Attorney General:

“All legal service in civil matters for the Commonwealth, the Governor, and every state department, institution, division, commission, board, bureau, agency, entity, official, court, or judge . . . shall be rendered and performed by the Attorney General, except as provided in this chapter and except for [certain judicial misconduct proceedings].” Va. Code Ann. § 2.2–507(A) (2017).²

Virginia has thus chosen to speak as a sovereign entity with a single voice. In this regard, the State has adopted an approach resembling that of the Federal Government, which “centraliz[es]” the decision whether to seek certiorari by “reserving litigation in this Court to the Attorney General and the Solicitor General.” *United States v. Providence Journal Co.*, 485 U. S. 693, 706 (1988) (dismissing a writ of certiorari sought by a special prosecutor without authorization from the Solicitor General); see 28 U. S. C. § 518(a); 28 CFR § 0.20(a) (2018). Virginia, had it so chosen, could have authorized the House to litigate on the State’s behalf, either generally or in a defined class of cases. *Hollingsworth*, 570 U. S., at 710. Some States have done just that. Indiana, for example, empowers “[t]he House of Representatives and Senate of the Indiana General Assembly . . . to employ attorneys other than the Attorney General to defend any law enacted creating legislative or congressional districts for the State of Indiana.” Ind. Code § 2–3–8–1 (2011). But the choice belongs to Virginia, and the House’s argument that it has authority to represent the State’s interests is foreclosed by the State’s contrary decision.

²The exceptions referenced in the statute’s text are inapposite here. They include circumstances where, “in the opinion of the Attorney General, it is impracticable or uneconomical for [the] legal service to be rendered by him or one of his assistants,” or where the Virginia Supreme Court or any of its justices are litigating matters “arising out of [that court’s] official duties.” § 2.2–507(C).

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The House observes that Virginia state courts have permitted it to intervene to defend legislation. But the sole case the House cites on this point—*Vesilind v. Virginia State Bd. of Elections*, 295 Va. 427, 813 S. E. 2d 739 (2018)—does not bear the weight the House would place upon it. In *Vesilind*, the House intervened in support of *defendants* in the trial court, and continued to *defend* the trial court’s favorable judgment on appeal. *Id.*, at 433–434, 813 S. E. 2d, at 742. The House’s participation in *Vesilind* thus occurred in the same defensive posture as did the House’s participation in earlier phases of this case, when the House did not need to establish standing. Moreover, the House has pointed to nothing in the Virginia courts’ decisions in the *Vesilind* litigation suggesting that the courts understood the House to be representing the interests of the State itself.

Nonetheless, the House insists, this Court’s decision in *Karcher v. May*, 484 U. S. 72 (1987), dictates that we treat *Vesilind* as establishing conclusively the House’s authority to litigate on the State’s behalf. True, in *Karcher*, the Court noted a record, similar to that in *Vesilind*, of litigation by state legislative bodies in state court, and concluded without extensive explanation that “the New Jersey Legislature had authority under state law to represent the State’s interests” 484 U. S., at 82. Of crucial significance, however, the Court in *Karcher* noted no New Jersey statutory provision akin to Virginia’s law vesting the Attorney General with exclusive authority to speak for the Commonwealth in civil litigation. *Karcher* therefore scarcely impels the conclusion that, despite Virginia’s clear enactment making the Attorney General the State’s sole representative in civil litigation, Virginia has designated the House as its agent to assert the State’s interests in this Court.

Moreover, even if, contrary to the governing statute, we indulged the assumption that Virginia had authorized the House to represent the State’s interests, as a factual matter

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the House never indicated in the District Court that it was appearing in that capacity. Throughout this litigation, the House has purported to represent its own interests. Thus, in its motion to intervene, the House observed that it was “the legislative body that actually drew the redistricting plan at issue,” and argued that the existing parties—including the State Defendants—could not adequately protect its interests. App. 2965–2967. Nowhere in its motion did the House suggest it was intervening as agent of the State. That silence undermines the House’s attempt to proceed before us on behalf of the State. As another portion of the Court’s *Karcher* decision clarifies, a party may not wear on appeal a hat different from the one it wore at trial. 484 U.S., at 78 (parties may not appeal in particular capacities “unless the record shows that they participated in those capacities below”).³

B

The House also maintains that, even if it lacks standing to pursue this appeal as the State’s agent, it has standing in its own right. To support standing, an injury must be “legally and judicially cognizable.” *Raines v. Byrd*, 521 U.S. 811, 819 (1997). This Court has never held that a judicial decision invalidating a state law as unconstitutional inflicts a discrete, cognizable injury on each organ of government that participated in the law’s passage. The Court’s precedent thus lends no support for the notion that one House of a bicameral legislature, resting solely on its role in the legisla-

³ Nor can we give ear to the House’s assertion that forfeiture or acquiescence bar the State Defendants from contesting the House’s authority to represent the State’s interests. See Brief for Appellants 29–30. As earlier observed, standing to sue (or appeal) is a nonwaivable jurisdictional requirement. See *supra*, at 662–663. Moreover, even if forfeiture were not beyond the pale, the State Defendants here could hardly be held to have relinquished an objection to the House’s participation in a capacity—on behalf of the State itself—in which the House was not participating in the District Court.

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tive process, may appeal on its own behalf a judgment invalidating a state enactment.

Seeking to demonstrate its asserted injury, the House emphasizes its role in enacting redistricting legislation in particular. The House observes that, under Virginia law, “members of the Senate and of the House of Delegates of the General Assembly shall be elected from electoral districts established by the General Assembly.” Va. Const., Art. 2, § 6. The House has standing, it contends, because it is “the legislative body that actually drew the redistricting plan,” and because, the House asserts, any remedial order will transfer redistricting authority from it to the District Court. Brief for Appellants 23, 26–28 (internal quotation marks omitted). But the Virginia constitutional provision the House cites allocates redistricting authority to the “General Assembly,” of which the House constitutes only a part.

That fact distinguishes this case from *Arizona State Legislature v. Arizona Independent Redistricting Comm’n*, 576 U. S. 787 (2015), in which the Court recognized the standing of the Arizona House and Senate—*acting together*—to challenge a referendum that gave redistricting authority exclusively to an independent commission, thereby allegedly usurping the legislature’s authority under the Federal Constitution over congressional redistricting. In contrast to this case, in *Arizona State Legislature* there was no mismatch between the body seeking to litigate and the body to which the relevant constitutional provision allegedly assigned exclusive redistricting authority. See 576 U. S., at 801. Just as individual members lack standing to assert the institutional interests of a legislature, see *Raines*, 521 U. S., at 829,⁴ a single House of a bicameral legislature lacks capacity to assert interests belonging to the legislature as a whole.

⁴ *Raines* held that individual Members of Congress lacked standing to challenge the Line Item Veto Act.

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Moreover, in *Arizona State Legislature*, the challenged referendum was assailed on the ground that it *permanently* deprived the legislative plaintiffs of their role in the redistricting process. Here, by contrast, the challenged order does not alter the General Assembly's dominant initiating and ongoing role in redistricting. Compare *Arizona State Legislature*, 576 U.S., at 804 (allegation of nullification of "any vote by the Legislature, now or in the future, purporting to adopt a redistricting plan" (internal quotation marks omitted)), with 326 F. Supp. 3d, at 227 (recognizing the General Assembly's "primary jurisdiction" over redistricting and giving the General Assembly first crack at enacting a revised redistricting plan).⁵

Nor does *Coleman v. Miller*, 307 U.S. 433 (1939), aid the House. There, the Court recognized the standing of 20 state legislators who voted against a resolution ratifying the proposed Child Labor Amendment to the Federal Constitution. *Id.*, at 446. The resolution passed, the opposing legislators stated, only because the Lieutenant Governor cast a tie-breaking vote—a procedure the legislators argued was impermissible under Article V of the Federal Constitution. See *Arizona State Legislature*, 576 U.S., at 803–804 (citing *Coleman*, 307 U.S., at 446). As the Court has since observed, *Coleman* stands "at most" "for the proposition that legislators whose votes would have been sufficient to defeat (or enact) a specific legislative Act have standing to sue if that legislative action goes into effect (or does not go into effect), on the ground that their votes have been completely

⁵ Misplaced for similar reasons is the House's reliance on this Court's statements in *INS v. Chadha*, 462 U.S. 919, 929–931, and nn. 5–6, 939–940 (1983), that the United States House and Senate were "proper parties" or "adverse parties." First, it is far from clear that the Court meant those terms to refer to standing, as opposed to the simple fact that both Houses of Congress had intervened. In any event, the statute at issue in *Chadha* granted *each* Chamber of Congress an *ongoing* power—to veto certain Executive Branch decisions—that each House could exercise independent of any other body.

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nullified.” *Raines*, 521 U. S., at 823. Nothing of that sort happened here. Unlike *Coleman*, this case does not concern the results of a legislative chamber’s poll or the validity of any counted or uncounted vote. At issue here, instead, is the constitutionality of a concededly enacted redistricting plan. As we have already explained, a single House of a bicameral legislature generally lacks standing to appeal in cases of this order.

Aside from its role in enacting the invalidated redistricting plan, the House, echoed by the dissent, see *post*, at 672–675, asserts that the House has standing because altered district boundaries may affect its composition. For support, the House and the dissent rely on *Sixty-seventh Minnesota State Senate v. Beens*, 406 U. S. 187 (1972) (*per curiam*), in which this Court allowed the Minnesota Senate to challenge a District Court malapportionment litigation order that reduced the Senate’s size from 67 to 35 members. The Court said in *Beens*: “[C]ertainly the [Minnesota Senate] is directly affected by the District Court’s orders,” rendering the Senate “an appropriate legal entity for purpose of intervention and, as a consequence, of an appeal in a case of this kind.” *Id.*, at 194.

Beens predated this Court’s decisions in *Diamond v. Charles* and other cases holding that intervenor status alone is insufficient to establish standing to appeal. Whether *Beens* established law on the question of standing, as distinct from intervention, is thus less than pellucid. But even assuming, *arguendo*, that *Beens* was, and remains, binding precedent on standing, the order there at issue injured the Minnesota Senate in a way the order challenged here does not injure the Virginia House. Cutting the size of a legislative chamber in half would necessarily alter its day-to-day operations. Among other things, leadership selection, committee structures, and voting rules would likely require alteration. By contrast, although redrawing district lines indeed may affect the membership of the chamber, the House

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as an institution has no cognizable interest in the identity of its members.⁶ Although the House urges that changes to district lines will “profoundly disrupt its day-to-day operations,” Reply Brief 3, it is scarcely obvious how or why that is so. As the party invoking this Court’s jurisdiction, the House bears the burden of doing more than “simply alleg[ing] a nonobvious harm.” *Wittman*, 578 U. S., at 545.

Analogizing to “group[s] other than a legislative body,” the dissent insists that the House has suffered an “obvious” injury. *Post*, at 673. But groups like the string quartet and basketball team posited by the dissent select their own members. Similarly, the political parties involved in the cases the dissent cites, see *post*, at 674, n. 1 (citing *New York State Bd. of Elections v. Lopez Torres*, 552 U. S. 196, 202 (2008), and *Eu v. San Francisco County Democratic Central Comm.*, 489 U. S. 214, 229–230 (1989)), select their own leadership and candidates. In stark contrast, the House does not select its own members. Instead, it is a representative body composed of members chosen by the people. Changes to its membership brought about by the voting public thus inflict no cognizable injury on the House.⁷

The House additionally asserts injury from the creation of what it calls “divided constituencies,” suggesting that a court order causing legislators to seek reelection in districts different from those they currently represent affects the House’s representational nature. But legislative districts change

⁶The dissent urges that changes to district lines will alter the House’s future legislative output. See *post*, at 672–675. A legislative chamber as an institution, however, suffers no legally cognizable injury from changes to the *content* of legislation its future members may elect to enact. By contrast, the House has an obvious institutional interest in the *manner* in which it goes about its business.

⁷The dissent further suggests that “we must assume that the districting plan enacted by the legislature embodies the House’s judgment” regarding the best way to select its members. *Post*, at 674. For the reasons explained *supra*, at 666–669, however, the House’s role in the legislative process does not give it standing to pursue this appeal.

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frequently—indeed, after every decennial census—and the Virginia Constitution resolves any confusion over which district is being represented. It provides that delegates continue to represent the districts that elected them, even if their reelection campaigns will be waged in different districts. Va. Const., Art. 2, §6 (“A member in office at the time that a decennial redistricting law is enacted shall complete his term of office and shall continue to represent the district from which he was elected for the duration of such term of office . . .”). We see little reason why the same would not hold true after districting changes caused by judicial decisions, and we thus foresee no representational confusion. And if harms centered on costlier or more difficult election campaigns are cognizable—a question that, as in *Wittman*, 578 U. S., at 544–546, we need not decide today—those harms would be suffered by individual legislators or candidates, not by the House as a body.

In short, Virginia would rather stop than fight on. One House of its bicameral legislature cannot alone continue the litigation against the will of its partners in the legislative process.

* * *

For the reasons stated, we dismiss the House’s appeal for lack of jurisdiction.

It is so ordered.

JUSTICE ALITO, with whom THE CHIEF JUSTICE, JUSTICE BREYER, and JUSTICE KAVANAUGH join, dissenting.

I would hold that the Virginia House of Delegates has standing to take this appeal. The Court disagrees for two reasons: first, because Virginia law does not authorize the House to defend the invalidated redistricting plan on behalf of the Commonwealth, see *ante*, at 663–666, and, second, because the imposition of the District Court’s districting plan would not cause the House the kind of harm required by Article III of the Constitution, see *ante*, at 666–671. I am

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convinced that the second holding is wrong and therefore will not address the first.

I

Our decision in *Lujan v. Defenders of Wildlife*, 504 U. S. 555, 560 (1992), identified the three elements that constitute the “irreducible constitutional minimum of standing” demanded by Article III. A party invoking the jurisdiction of a federal court must have “(1) suffered an injury in fact, (2) that is fairly traceable to the challenged conduct of the defendant, and (3) that is likely to be redressed by a favorable judicial decision.” *Spokeo, Inc. v. Robins*, 578 U. S. 330, 338 (2016). The Virginia House of Delegates satisfies all those requirements in this case.

I begin with “injury in fact.” It is clear, in my judgment, that the new districting plan ordered by the lower court will harm the House in a very fundamental way. A legislative districting plan powerfully affects a legislative body’s output of work. Each legislator represents a particular district, and each district contains a particular set of constituents with particular interests and views. Cf., *e. g.*, App. 165 (noting the “varied factors that can create or contribute to communities of interest” in districts (House Committee on Privileges and Elections resolution)). The interests and views of these constituents generally have an important effect on everything that a legislator does—meeting with the representatives of organizations and groups seeking the legislator’s help in one way or another, drafting and sponsoring bills, pushing for and participating in hearings, writing or approving reports, and of course, voting. When the boundaries of a district are changed, the constituents and communities of interest present within the district are altered, and this is likely to change the way in which the district’s representative does his or her work. And while every individual voter will end up being represented by a legislator no matter which districting plan is ultimately used, it matters a lot how voters with shared interests and views are concentrated or

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split up. The cumulative effects of all the decisions that go into a districting plan have an important impact on the overall work of the body.

All of this should really go without saying. After all, it is precisely because of the connections between the way districts are drawn, the composition of a legislature, and the things that a legislature does that so much effort is invested in drawing, contesting, and defending districting plans. Districting matters because it has institutional and legislative consequences. To suggest otherwise, to argue that substituting one plan for another has no effect on the work or output of the legislative body whose districts are changed, would really be quite astounding. If the selection of a districting plan did not alter what the legislative body does, why would there be such pitched battles over redistricting efforts?

What the Court says on this point is striking. According to the Court, “the House as an institution has no cognizable interest in the identity of its members,” and thus suffers no injury from the imposition of a districting plan that “may affect the membership of the chamber” or the “content of legislation its future members may elect to enact.” *Ante*, at 669–670, and n. 6 (emphasis deleted). Really? It seems obvious that any group consisting of members who must work together to achieve the group’s aims has a keen interest in the identity of its members, and it follows that the group also has a strong interest in how its members are selected. And what is more important to such a group than the content of its work?

Apply what the Court says to a group other than a legislative body and it is immediately obvious that the Court is wrong. Does a string quartet have an interest in the identity of its cellist? Does a basketball team have an interest in the identity of its point guard? Does a board of directors have an interest in the identity of its chairperson? Does it matter to these groups how their members are selected? Do these groups care if the selection method affects their performance? Of course.

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The Virginia House of Delegates exists for a purpose: to represent and serve the interests of the people of the Commonwealth. The way in which its members are selected has a powerful effect on how it goes about this purpose¹—a proposition reflected by the Commonwealth’s choice to mandate certain districting criteria in its constitution. See Va. Const., Art. II, § 6. As far as the House’s standing, we must assume that the districting plan enacted by the legislature embodies the House’s judgment regarding the method of selecting members that best enables it to serve the people of the Commonwealth. (Whether this is a permissible judgment is a merits question, not a question of standing. Cf. *Warth v. Seldin*, 422 U. S. 490, 502 (1975).) It therefore follows that discarding that plan and substituting another inflicts injury in fact.

Our most pertinent precedent supports the standing of the House on this ground. In *Sixty-seventh Minnesota State Senate v. Beens*, 406 U. S. 187 (1972) (*per curiam*), we held that the Minnesota Senate had standing to appeal a District Court order reapportioning the Senate’s seats. In reaching that conclusion, we noted that “certainly” such an order “directly affected” the Senate. *Id.*, at 194. The same is true here. There can be no doubt that the new districting plan “directly affect[s]” the House whose districts it redefines and whose legislatively drawn districts have been replaced with a court-ordered map. That the *Beens* Court drew its “directly affect[s]” language from a case involving a standard reapportionment challenge, see *Silver v. Jordan*, 241 F. Supp. 576, 579 (SD Cal. 1964) (*per curiam*), *aff’d*, 381 U. S. 415 (1965) (*per curiam*), only serves to confirm that the House’s injury is sufficient to demonstrate standing under *Beens*.

¹The Court has not hesitated to recognize this link in other contexts. See, e. g., *New York State Bd. of Elections v. Lopez Torres*, 552 U. S. 196, 202 (2008); *Eu v. San Francisco County Democratic Central Comm.*, 489 U. S. 214, 229–230 (1989).

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In an effort to distinguish *Beens*, it is argued that the District Court decision at issue there, which slashed the number of senators in half, “ha[d] a distinct and more direct effect on the body itself than a mere shift in district lines.” Brief for United States as *Amicus Curiae* 17; see Brief for State Appellees 38. But even if the effect of the court order was greater in *Beens* than it is here, it is the existence—not the extent—of an injury that matters for purposes of Article III standing.

The Court suggests that the effects of the court-ordered districting plan in *Beens* were different from the effects of the plan now before us because the former concerned the legislature’s internal operations. See *ante*, at 669–670. But even if the imposition of the court-ordered plan in this case would not affect the internal operations of the House (and that is by no means clear), it is very strange to think that changes to such things as “committee structures” and “voting rules,” see *ante*, at 669, are more important than changes in legislative output.

In short, the invalidation of the House’s redistricting plan and its replacement with a court-ordered map would cause the House to suffer a “concrete” injury. And as Article III demands, see *Spokeo*, 578 U. S., at 338–339, that injury would also be “particularized” (because it would target the House); “imminent” (because it would certainly occur if this appeal is dismissed); “traceable” to the imposition of the new, court-ordered plan; and “redress[able]” by the relief the House seeks here, *ibid.*

II

Although the opinion of the Court begins by citing the three fundamental Article III standing requirements just discussed, see *ante*, at 662, it is revealing that the Court never asserts that the effect of the court-ordered plan at issue would not cause the House “concrete” harm. Instead, the Court claims only that any harm would not be “‘judicially cognizable,’” *ante*, at 666; see also *ante*, at 669–670. The Court lifts

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this term from *Raines v. Byrd*, 521 U.S. 811, 819 (1997), where the Court held that individual Members of *Congress* lacked standing to challenge the constitutionality of the Line Item Veto Act. But the decision in *Raines* rested heavily on federal separation-of-powers concerns, which are notably absent here. See *id.*, at 819–820, 826–829; *id.*, at 832–835 (Souter, J., concurring in judgment). And although the Court does not say so expressly, what I take from its use of the term “judicially cognizable” injury rather than “concrete” injury is that the decision here is not really based on the *Lujan* factors, which set out the “irreducible” minimum demanded by Article III. 504 U.S., at 560. Instead, the argument seems to be that the House’s injury is insufficient for some other, only-hinted-at reason.

Both the United States, appearing as an *amicus*, and the Commonwealth of Virginia are more explicit. The Solicitor General’s brief argues as follows:

“In the federal system, the Constitution gives Congress only ‘legislative Powers,’ U. S. Const. Art. 1, § 1, and the ‘power to seek judicial relief . . . cannot possibly be regarded as merely in aid of the legislative function.’ *Buckley v. Valeo*, 424 U.S. 1, 138 (1976) (per curiam). As a result, ‘once Congress makes its choice in enacting legislation, its participation ends.’ *Bowsher v. Synar*, 478 U.S. 714, 733 (1986). . . . *The same is true here.* A branch of a state government that makes rather than enforces the law does not itself have a cognizable Article III interest in the defense of its laws.” Brief for United States as *Amicus Curiae* 14–15 (emphasis added).

The Virginia Solicitor General makes a similar argument. See Brief for State Appellees 42–44.

These arguments are seriously flawed because the States are under no obligation to follow the Federal Constitution’s model when it comes to the separation of powers. See *Whalen v. United States*, 445 U.S. 684, 689, n. 4 (1980); cf.

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Raines, supra, at 824, n. 8; *Arizona State Legislature v. Arizona Independent Redistricting Comm’n*, 576 U. S. 787, 803, n. 12 (2015). If one House of Congress or one or more Members of Congress attempt to invoke the power of a federal court, the court must consider whether this attempt is consistent with the structure created by the Federal Constitution. An interest asserted by a Member of Congress or by one or both Houses of Congress that is inconsistent with that structure may not be judicially cognizable. But I do not see how we can say anything similar about the standing of state legislators or state legislative bodies.² Cf. *Karcher v. May*, 484 U. S. 72, 81–82 (1987). The separation of powers (or the lack thereof) under a state constitution is purely a matter of state law, and neither the Court nor the Virginia Solicitor General has provided any support for the proposition that Virginia law bars the House from defending, in its own right, the constitutionality of a districting plan.

* * *

For these reasons, I would hold that the House of Delegates has standing, and I therefore respectfully dissent.

²The Court’s observation that the Virginia Constitution gives legislative districting authority to the General Assembly as a whole—in other words, to the House of Delegates and the Senate in combination—does not answer the question. To start, a similar argument against standing was pressed and rejected in *Sixty-seventh Minnesota State Senate v. Beens*, 406 U. S. 187 (1972) (*per curiam*), see Motion of Appellees To Dismiss Appeal in O. T. 1971, No. 71–1024, p. 9, and the Court does not explain why a different outcome is warranted here. Nor am I persuaded by the Court’s citation of *Arizona State Legislature v. Arizona Independent Redistricting Comm’n*, 576 U. S. 787 (2015). There, the Court held that the Arizona Legislature had standing to bring a suit aimed at protecting its redistricting authority. But from the fact that a whole legislature may have standing to defend its redistricting authority, it does not follow that the House necessarily lacks standing to challenge a redistricting decision based on concrete injuries to its institutional interests. Cf. *Spokeo, Inc. v. Robins*, 578 U. S. 330, 339, n. 7 (2016).

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GAMBLE *v.* UNITED STATESCERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE ELEVENTH CIRCUIT

No. 17–646. Argued December 6, 2018—Decided June 17, 2019

Petitioner Gamble pleaded guilty to a charge of violating Alabama’s felon-in-possession-of-a-firearm statute. Federal prosecutors then indicted him for the same instance of possession under federal law. Gamble moved to dismiss, arguing that the federal indictment was for “the same offence” as the one at issue in his state conviction, thus exposing him to double jeopardy under the Fifth Amendment. The District Court denied this motion, invoking the dual-sovereignty doctrine, according to which two offenses “are *not* the ‘same offence’” for double jeopardy purposes if “prosecuted by different sovereigns,” *Heath v. Alabama*, 474 U. S. 82, 92. Gamble pleaded guilty to the federal offense but appealed on double jeopardy grounds. The Eleventh Circuit affirmed.

Held: This Court declines to overturn the longstanding dual-sovereignty doctrine. Pp. 683–710.

(a) The dual-sovereignty doctrine is not an exception to the double jeopardy right but follows from the Fifth Amendment’s text. The Double Jeopardy Clause protects individuals from being “twice put in jeopardy” “for the same offence.” As originally understood, an “offence” is defined by a law, and each law is defined by a sovereign. Thus, where there are two sovereigns, there are two laws and two “offences.” Gamble attempts to show from the Clause’s drafting history that Congress must have intended to bar successive prosecutions regardless of the sovereign bringing the charge. But even if conjectures about subjective goals were allowed to inform this Court’s reading of the text, the Government’s contrary arguments on that score would prevail. Pp. 683–685.

(b) This Court’s cases reflect the sovereign-specific reading of the phrase “same offence.” Three antebellum cases—*Fox v. Ohio*, 5 How. 410; *United States v. Marigold*, 9 How. 560; and *Moore v. Illinois*, 14 How. 13—laid the foundation that a crime against two sovereigns constitutes two offenses because each sovereign has an interest to vindicate. Seventy years later, that foundation was cemented in *United States v. Lanza*, 260 U. S. 377, which upheld a federal prosecution that followed one by a State. This Court applied that precedent for decades until 1959, when it refused two requests to reverse course, see *Bartkus v. Illinois*, 359 U. S. 121; *Abbate v. United States*, 359 U. S. 187, and it has

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reinforced that precedent over the following six decades, see, *e. g.*, *Puerto Rico v. Sánchez Valle*, 579 U. S. 59. Pp. 685–690.

(c) Gamble claims that this Court’s precedent contradicts the common-law rights that the Double Jeopardy Clause was originally understood to engraft onto the Constitution, pointing to English and American cases and treatises. A departure from precedent, however, “demands special justification,” *Arizona v. Rumsey*, 467 U. S. 203, 212, and Gamble’s historical evidence is too feeble to break the chain of precedent linking dozens of cases over 170 years. This Court has previously concluded that the probative value of early English decisions on which Gamble relies was “dubious” due to “confused and inadequate reporting.” *Bartkus*, 359 U. S., at 128, n. 9. On closer inspection, that assessment has proved accurate; the passing years have not made those early cases any clearer or more valuable. Nor do the treatises cited by Gamble come close to settling the historical question with enough force to meet his particular burden. His position is also not supported by state-court cases, which are equivocal at best. Less useful still are the two federal cases cited by Gamble—*Houston v. Moore*, 5 Wheat. 1, which squares with the dual-sovereignty doctrine, and *United States v. Furlong*, 5 Wheat. 184, which actually supports it. Pp. 691–707.

(d) Gamble’s attempts to blunt the force of *stare decisis* here do not succeed. He contends that the recognition of the Double Jeopardy Clause’s incorporation against the States washed away any theoretical foundation for the dual-sovereignty rule. But this rule rests on the fact that only same-sovereign prosecutions can involve the “same offence,” and that is just as true after incorporation as before. Gamble also argues that the proliferation of federal criminal laws has raised the risk of successive prosecutions under state and federal law for the same criminal conduct, thus compounding the harm inflicted by precedent. But this objection obviously assumes that precedent was erroneous from the start, so it is only as strong as the historical arguments found wanting. In any case, eliminating the dual-sovereignty rule would do little to trim the reach of federal criminal law or prevent many successive state and federal prosecutions for the same criminal conduct, see *Blockburger v. United States*, 284 U. S. 299. Pp. 707–710.

694 Fed. Appx. 750, affirmed.

ALITO, J., delivered the opinion of the Court, in which ROBERTS, C. J., and THOMAS, BREYER, SOTOMAYOR, KAGAN, and KAVANAUGH, JJ., joined. THOMAS, J., filed a concurring opinion, *post*, p. 710. GINSBURG, J., *post*, p. 726, and GORSUCH, J., *post*, p. 737, filed dissenting opinions.

Counsel

Louis A. Chaiten argued the cause for petitioner. With him on the briefs were *Emmett E. Robinson*, *Amanda K. Rice*, *Robert N. Stander*, and *Barre C. Dumas*.

Eric J. Feigin argued the cause for the United States. With him on the brief were *Acting Solicitor General Wall*, *Assistant Attorney General Benczkowski*, *Jenny C. Ellickson*, and *Ross B. Goldman*.

Kyle D. Hawkins, Solicitor General of Texas, argued the cause for the State of Texas et al. as *amici curiae* urging affirmance. With him on the brief were *Ken Paxton*, Attorney General of Texas, *Jeffrey C. Mateer*, First Assistant Attorney General, *J. Campbell Barker*, Deputy Solicitor General, and *Eric A. White* and *Ari Cuenin*, Assistant Solicitors General, and by the Attorneys General and other officials for their respective States as follows: *Steve Marshall* of Alabama, *Mark Brnovich* of Arizona, *Leslie Rutledge* of Arkansas, *Xavier Becerra* of California, *Cynthia H. Coffman* of Colorado, *Kevin T. Kane*, Chief State's Attorney of Connecticut, *Pamela Jo Bondi* of Florida, *Christopher M. Carr* of Georgia, *Lawrence G. Wasden* of Idaho, *Lisa Madigan* of Illinois, *Tom Miller* of Iowa, *Derek Schmidt* of Kansas, *Jeff Landry* of Louisiana, *Brian E. Frosh* of Maryland, *Maura Healey* of Massachusetts, *Bill Schuette* of Michigan, *Tim Fox* of Montana, *Doug Peterson* of Nebraska, *Gurbir S. Grewal* of New Jersey, *Hector H. Balderas* of New Mexico, *Barbara D. Underwood* of New York, *Joshua H. Stein* of North Carolina, *Michael DeWine* of Ohio, *Mike Hunter* of Oklahoma, *Ellen F. Rosenblum* of Oregon, *Josh Shapiro* of Pennsylvania, *Peter Kilmartin* of Rhode Island, *Alan Wilson* of South Carolina, *Marty J. Jackley* of South Dakota, *Sean Reyes* of Utah, *Thomas J. Donovan, Jr.*, of Vermont, *Mark R. Herring* of Virginia, *Robert W. Ferguson* of Washington, *Patrick Morrissey* of West Virginia, and *Brad Schimel* of Wisconsin.*

*Briefs of *amici curiae* urging reversal were filed for the Constitutional Accountability Center et al. by *Elizabeth B. Wydra*, *Brianne J. Gorod*, *Ashwin P. Phatak*, *Ilya Shapiro*, *Jay R. Schweikert*, *David Cole*, *Ezekiel*

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JUSTICE ALITO delivered the opinion of the Court.

We consider in this case whether to overrule a longstanding interpretation of the Double Jeopardy Clause of the Fifth Amendment. That Clause provides that no person may be “twice put in jeopardy” “for the same offence.” Our double jeopardy case law is complex, but at its core, the Clause means that those acquitted or convicted of a particular “offence” cannot be tried a second time for the same “offence.” But what does the Clause mean by an “offence”?

We have long held that a crime under one sovereign’s laws is not “the same offence” as a crime under the laws of another sovereign. Under this “dual-sovereignty” doctrine, a State may prosecute a defendant under state law even if the Federal Government has prosecuted him for the same conduct under a federal statute.

Or the reverse may happen, as it did here. Terance Gamble, convicted by Alabama for possessing a firearm as a felon, now faces prosecution by the United States under its own felon-in-possession law. Attacking this second prosecution on double jeopardy grounds, Gamble asks us to overrule the dual-sovereignty doctrine. He contends that it departs

R. Edwards, and Randall Marshall; for Criminal Defense Experts by Paul D. Clement and George W. Hicks, Jr.; for Criminal Procedure Professors by Peder K. Batalden, Barry R. Levy, and Stephen E. Henderson, pro se; for Law Professors by Stuart Banner and Paul G. Cassell, both pro se; for the National Association of Criminal Defense Lawyers et al. by Jonathan L. Marcus, Paul M. Kerlin, David M. Porter, Daniel L. Kaplan, and Donna F. Coltharp; for The Rutherford Institute by John W. Whitehead; for the U. S. Navy-Marine Corps Appellate Defense Division et al. by Rebecca S. Snyder, Daniel E. Rosinski, John C. Reardon, Jane E. Boomer, Christopher D. Carrier, and Elizabeth G. Marotta; and for Sen. Orrin Hatch by Adam G. Unikowsky.

Briefs of *amici curiae* urging affirmance were filed for the National Association of Counties et al. by *Gordon D. Todd, Joshua J. Fougere, and Lisa Soronen*; and for the National Indigenous Women’s Resource Center et al. by *Mary Kathryn Nagle*.

Adam Harris Kurland filed a brief for the Howard University School of Law Thurgood Marshall Civil Rights Center as *amicus curiae*.

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from the founding-era understanding of the right enshrined by the Double Jeopardy Clause. But the historical evidence assembled by Gamble is feeble; pointing the other way are the Clause’s text, other historical evidence, and 170 years of precedent. Today we affirm that precedent, and with it the decision below.

I

In November 2015, a local police officer in Mobile, Alabama, pulled Gamble over for a damaged headlight. Smelling marijuana, the officer searched Gamble’s car, where he found a loaded 9-mm handgun. Since Gamble had been convicted of second-degree robbery, his possession of the handgun violated an Alabama law providing that no one convicted of “a crime of violence” “shall own a firearm or have one in his or her possession.” Ala. Code § 13A–11–72(a) (2015); see § 13A–11–70(2) (defining “crime of violence” to include robbery). After Gamble pleaded guilty to this state offense, federal prosecutors indicted him for the same instance of possession under a federal law—one forbidding those convicted of “a crime punishable by imprisonment for a term exceeding one year . . . to ship or transport in interstate or foreign commerce, or possess in or affecting commerce, any firearm or ammunition.” 18 U. S. C. § 922(g)(1).

Gamble moved to dismiss on one ground: The federal indictment was for “the same offence” as the one at issue in his state conviction and thus exposed him to double jeopardy. But because this Court has long held that two offenses “are *not* the ‘same offence’” for double jeopardy purposes if “prosecuted by different sovereigns,” *Heath v. Alabama*, 474 U. S. 82, 92 (1985), the District Court denied Gamble’s motion to dismiss. Gamble then pleaded guilty to the federal offense while preserving his right to challenge the denial of his motion to dismiss on double jeopardy grounds. But on appeal the Eleventh Circuit affirmed, citing the dual-sovereignty doctrine. 694 Fed. Appx. 750 (2017). We

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granted certiorari to determine whether to overturn that doctrine.¹ 585 U. S. 1029 (2018).

II

Gamble contends that the Double Jeopardy Clause must forbid successive prosecutions by different sovereigns because that is what the founding-era common law did. But before turning to that historical claim, see Part III, *infra*, we review the Clause’s text and some of the cases Gamble asks us to overturn.

A

We start with the text of the Fifth Amendment. Although the dual-sovereignty rule is often dubbed an “exception” to the double jeopardy right, it is not an exception at all. On the contrary, it follows from the text that defines that right in the first place. “[T]he language of the Clause . . . protects individuals from being twice put in jeopardy ‘for the same *offence*,’ not for the same *conduct* or *actions*,” *Grady v. Corbin*, 495 U. S. 508, 529 (1990), as Justice Scalia wrote in a soon-vindicated dissent, see *United States v. Dixon*, 509 U. S. 688 (1993) (overruling *Grady*). And the term “[o]ffence” was commonly understood in 1791 to mean ‘transgression,’ that is, ‘the Violation or Breaking of a Law.’” *Grady*, 495 U. S., at 529 (Scalia, J., dissenting) (quoting *Dictionarium Britannicum* (Bailey ed. 1730)). See also 2 R. Burn & J. Burn, *A New Law Dictionary* 167 (1792) (“OFFENCE, is an act committed against law, or omitted where the law requires it”). As originally understood, then, an “offence” is defined by a law, and each law is defined by a sovereign. So where there are two sovereigns, there are two laws, and two “offences.” See *Grady*, 495 U. S., at 529

¹In addressing that question, we follow the parties’ lead and assume, without deciding, that the state and federal offenses at issue here satisfy the other criteria for being the “same offence” under our double jeopardy precedent. See *Blockburger v. United States*, 284 U. S. 299, 304 (1932).